

The Indecent Representation of Women (Prohibition) Act, 1986

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The Indecent Representation of Women (Prohibition) Act, 1986

UNION OF INDIA

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The Indecent Representation of Women (Prohibition) Act, 1986

Act 60 of 1986

Published on 23 December 1986

Commenced on 23 December 1986

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The Indecent Representation of Women (Prohibition) Act, 1986

(60 of 1986)

Last Updated 30th December, 2019

An Act to prohibit indecent representation of women through advertisements or in publications, writings, paintings, figures or in any other manner and for matters connected therewith or incidental thereto .

Be it enacted by Parliament in the Thirty-seventh Year of the Republic of India as follows:

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Published in the Gazette of India, Ext., Pt.II, Section 1, No. 74, dated 23.12.1986.Enforced on 2.10.1987.

}

1.

Short title, extent and commencement

(1)

This Act may be called The Indecent Representation of Women (Prohibition) Act , 1986.

(2)

It extends to the whole of India, [***]

[The words 'except the State of Jammu and Kashmir' omitted by Act

No. 34 of 2019

, s. 95 and the Fifth Schedule (w.e.f. 31-10-2019)]

.

(3)

It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

2.

Definitions

.In this Act, unless the context otherwise requires,

(a)

advertisement includes any notice, circular, label, wrapper or other document and also includes any visible representation made by means of any light, sound, smoke or gas;

(b)

distribution includes distribution by way of samples whether free or otherwise;

(c)

indecent representation of women means the depiction in any manner of the figure of a woman, her form or body or any part thereof in such a way as to have the effect of being indecent, or derogatory to, or denigrating, women, or is likely to deprave, corrupt or injure the public morality or morals;

(d)

label means any written, marked, stamped, printed or graphic matter, affixed to, or appearing upon, any package;

(e)

package includes a box, carton, tin or other container;

(f)

prescribed means prescribed by rules made under this Act.

3.

Prohibition of advertisements containing indecent representation of woman

.No person shall publish, or cause to be published, or arrange or take part in the publication or exhibition of, any advertisement which contains indecent representation of women in any form.

4.

Prohibition of publication or sending by post of books, pamphlets, etc., containing indecent representation of women

.No person shall produce or cause to be produced, sell, let to hire, distribute, circulate or send by post any book, pamphlet, paper, slide, film, writing, drawing, painting, photograph, representation or figure which contains indecent representation of women in any form:

Provided that nothing in this section shall apply to

(a)

any book, pamphlet, paper, slide, film, writing, drawing, painting, photograph, representation or figure

(i)

the publication of which is proved to be justified as being for the public good on the ground that such book, pamphlet, paper, slide, film, writing, drawing, painting, photograph, representation or figure is in the interest of science, literature, art, or learning or other object of general concern; or

(ii)

which is kept or used bona fide for religious purposes;

(b)

any representation sculptured, engraved, painted or otherwise represented on or in,

(i)

any ancient monument within the meaning of the Ancient Monument and Archaeological Sites and Remains Act, 1958 (24 of 1958), or

(ii)

any temple, or on any car used for the conveyance of idols, or kept or used for any religious purposes;

(c)

any film in respect of which the provisions of Part II of the Cinematograph Act, 1952 (

37 of 1952

), will be applicable.

5.

Powers to enter and search

(1)

Subject to such rules as may be prescribed, any Gazetted Officer authorised by the State Government may, within the local limits of the area for which he is so authorised,

(a)

enter and search at all reasonable times, with such assistance, if any, as he considers necessary, any place in which he has reason to believe that an offence under this Act has been or is being committed;

(b)

seize any advertisement or any book, pamphlet, paper, slide, film, writing, drawing, painting, photograph, representation or figure which he has reason to believe contravenes any of the provisions of this Act;

(c)

examine any record, register, document or any other material object found in any place mentioned in clause (a) and seize the same if he has reason to believe that it may furnish evidence of the commission of an offence punishable under this Act:

Provided that no entry under this sub-section shall be made into a private dwelling-house without a warrant:

Provided further that the power of seizure under this sub-section may be exercised in respect of any document, article or thing which contains any such advertisement, including the contents, if any, of such documents, article or thing if the advertisement cannot be separated by reason of its being embossed or otherwise from such document, article or thing without affecting the integrity, utility or saleable value thereof.

(2)

The provisions of the Code of Criminal Procedure, 1973 (2 of 1974), shall, so far as may be, apply to any search or seizure under this Act as they apply to any search or seizure made under the authority of a warrant issued under section 94 of the said Code.

(3)

Where any person seizes anything under clause (b) or clause (c) of sub-section (1), he shall, as soon as may be, inform the nearest Magistrate and take his orders as to the custody thereof.

6.

Penalty

.Any person who contravenes the provisions of section 3 or section 4 shall be punishable on first conviction with imprisonment of either description for a term which may extend to two years, and with fine which may extend to two thousand rupees, and in the event of a second or subsequent conviction with imprisonment for a term of not less than six months but which may extend to five years and also with a fine not less than ten thousand rupees but which may extend to one lakh rupees.

7.

Offences by companies

(1)

Where an offence under this Act has been committed by a company, every person, who, at the time the offence was committed, was incharge of, and was responsible to, the company for the conduct of the business of the company, as well as the company, shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any such person liable to any punishment, if he proves that the offence was committed without his knowledge or that he had exercised all due diligence to prevent the

commission of such offence.

(2)

Notwithstanding anything contained in sub-section (1), where any offence under this Act has been committed by a company and it is proved that the offence has been committed with the consent or connivance of, or is attributable to any neglect on the part of, any director, manager, secretary or other officer of the company, such director, manager, secretary or other officer shall be proceeded against and punished accordingly.

Explanation. For the purposes of this section,

(a)

company means any body corporate and includes a firm or other association of individuals; and

(b)

director, in relation to a firm, means a partner in the firm.

8.

Offences to be cognizable and bailable

(1)

Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974), an offence punishable under this Act shall be bailable.

(2)

An offence punishable under this Act shall be cognizable.

9.

Protection of action taken in good faith

No suit, prosecution or other legal proceeding shall lie against the Central Government or any State Government or any other officer of the Central Government or any State Government for anything which is in good faith done or intended to be done under this Act.

10.

Power to make rules

(1)

The Central Government may, by notification in the Official Gazette, make rules to carry out the provisions of this Act.

(2)

In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely

(a)

the manner in which the seizure of advertisements or other articles shall be made, and the manner in which the seizure list shall be prepared and delivered to the person from whose custody any advertisement or other article has been seized;

(b)

any other matter which is required to be, or may be, prescribed.

(3)

Every rule made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session for a total period of thirty days, which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

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